PREPARED FOR THE RECORD FIXTURE FAMILY · SEPTEMBER 6, 2026

Homeschooling in New York

The requirements, the deadlines, and the records worth keeping, in one place.

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State rules last verified March 2026 · source: HomeschoolLeap (CC BY-SA 4.0) · pack made September 6, 2026

Homeschooling is legal in all 50 states, including New York. This pack organizes New York's published homeschool rules so you can see them in one place. It is legal information, not legal advice, and Homa is not a law firm. Downloading or filling out this pack does not notify New York and does not by itself satisfy any state requirement of any kind; the record templates become part of your own records once you fill them in, and where a filing is required, this pack links to the official channel. New York publishes one route for homeschooling families, and this pack covers it. Every rule here comes from the sources cited in this pack, last verified March 2026. Laws change, so the current statute is always worth a look before you act on a deadline. Make a fresh pack from Homa before each school year and before filing anything. If your situation is unusual, or a district ever questions your homeschooling, a homeschool-friendly attorney or a legal defense organization can advise you; this pack cannot.

State requirement data by HomeschoolLeap (https://homeschoolleap.com/states/NY), used under CC BY-SA 4.0 (creativecommons.org/licenses/by-sa/4.0). Homa reformatted and summarized this data for your pack, and the requirement summary sections are available under that same license. The data is provided as is by its source. Your family's information and the Homa name and logo are not part of that license.

YOUR STATE · RULES VERIFIED MARCH 2026

Key requirements at a glance

How New York works for the pathway most families use, so nothing about it ever surprises you.

Telling the state	A detailed plan or report goes to superintendent of the local school district. When: **By July 1 annually, or within 14 days of commencing home instruction mid-year** · how often: annual · 8 NYCRR 100.10
Year-end check	This pathway asks for a year-end artifact: standardized test, teacher eval. How often: annual
Instructional time	900 hours per year.
Records to keep	This pathway asks families to keep an attendance record.
Subjects	arithmetic/mathematics; reading; spelling; writing; English/language arts; geography; United States history; science; health education; music; visual arts; physical education.
School-age window	Ages 6 to 16. Children must receive instruction from the school year in which they turn 6 until the end of the school year in which they turn 16. A child turning 6 on or before December 1 generally must begin that school year. In New York City, compulsory education extends to age 17. Kindergarten is not compulsory under state law.
Most families use	Home Instruction Under Commissioner's Regulations.

KEY DATES FOR YOUR YEAR

July 1 — File by July 1 annually

Within 14 days if starting mid-year

By July 1 annually, or within 14 days of commencing home instruction mid-year · to superintendent of the local school district · annual

New York has detailed requirements beyond this summary. Confirm with https://www.nysed.gov/nonpublic-schools/home-instruction and your district before filing.

Legal information, not legal advice · data: HomeschoolLeap, CC BY-SA 4.0

YOUR STATE · RULES VERIFIED MARCH 2026

Where this comes from

Every rule in this pack traces to a published source you can read yourself.

The primary statute is **8 NYCRR 100.10** (https://www.nysed.gov/curriculum-instruction/10010-home-instruction).

8 NYCRR 100.10
https://www.nysed.gov/curriculum-instruction/10010-home-instruction

Education Law 310
https://www.nysenate.gov/legislation/laws/EDN/310

Education Law 3602-c
https://www.nysenate.gov/legislation/laws/EDN/3602-C

Education Law 4404
https://www.nysenate.gov/legislation/laws/EDN/4404

NY Education Law 3204
https://www.nysenate.gov/legislation/laws/EDN/3204

NY Education Law 3205
https://www.nysenate.gov/legislation/laws/EDN/3205

NY Education Law 3210
https://www.nysenate.gov/legislation/laws/EDN/3210

NY Education Law 3212
https://www.nysenate.gov/legislation/laws/EDN/3212

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YOUR STATE · RULES VERIFIED MARCH 2026

Your New York checklist

These steps reflect New York's rules for the Home Instruction Under Commissioner's Regulations pathway, the one most families use. Other pathways carry different rules; they are listed on the sources page.

- [ ] New York requires: file your notice with superintendent of the local school district. Done on _____
  When: **By July 1 annually, or within 14 days of commencing home instruction mid-year**. How often: annual. 8 NYCRR 100.10

- [ ] New York requires: plan the year around **900 hours** of instruction. Done on _____
  The instructional-time log in this pack is one easy way to keep the running total. 8 NYCRR 100.10

- [ ] New York requires: keep an **attendance record** through the year. Done on _____
  There is an attendance page in this pack for each of your children. 8 NYCRR 100.10

- [ ] New York requires: arrange the **year-end check** (standardized test, teacher eval). Done on _____
  How often: annual. The year-end record page keeps what you arranged and when. 8 NYCRR 100.10

- [ ] New York requires: cover the **required subjects**. Done on _____
  arithmetic/mathematics; reading; spelling; writing; English/language arts; geography; United States history; science; health education; music; visual arts; physical education. 8 NYCRR 100.10

you've got this

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NEW YORK ASKS FOR AN ATTENDANCE RECORD ON THE DEFAULT PATH · RULES VERIFIED MARCH 2026

Attendance · Same

A record-keeping template, offered because New York's default pathway asks families to keep an attendance record. Keeping it in this format is one good way, not the only way.

School year: _____ Mark each day you did school. A mark is a mark; you decide what counts as a day.

	1	2	3	4	5	6	7	8	9	10	11	12	13	14	15	16	17	18	19	20	21	22	23	24	25	26	27	28	29	30	31	Days
Jul																																
Aug																																
Sep																																
Oct																																
Nov																																
Dec																																
Jan																																
Feb																																
Mar																																
Apr																																
May																																
Jun																																

Days this year: _____

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Jul																																
Aug																																
Sep																																
Oct																																
Nov																																
Dec																																
Jan																																
Feb																																
Mar																																
Apr																																
May																																
Jun																																

Days this year: _____

NEW YORK ASKS FOR 900 HOURS PER YEAR ON THE DEFAULT PATH · RULES VERIFIED MARCH 2026

Instructional time log

A record-keeping template, offered because New York's default pathway sets an instructional-time minimum. No record format is prescribed; a running log is one good way to show the year, not the only way.

Date	What we worked on	Time

Total this page: _____

NEW YORK ASKS FOR A YEAR-END CHECK ON THE DEFAULT PATH · RULES VERIFIED MARCH 2026

Year-end check record

A place to keep what you arranged for the year-end check New York's default pathway asks for: what it was, when, and where you keep the result. The statute names: standardized test, teacher eval. This format is one good way, not the only way.

Child	What we arranged	Date	Kept where
Same			
Same			

YOUR STATE · RULES VERIFIED MARCH 2026

Filing preparation for New York

What New York asks for, next to the details you already have.

WHAT NEW YORK ASKS FOR

Who receives it: superintendent of the local school district.

When: By July 1 annually, or within 14 days of commencing home instruction mid-year.

What kind: a detailed plan or report.

How often: annual.

YOUR DETAILS, READY TO COPY

Parent name Synthetic parent

Home address _____

City, state, zip _____

Child Same · born March 9, 2018

Last name _____

Grade level (you choose this) _____

Child Same · born November 21, 2020

Last name _____

Grade level (you choose this) _____

Check every detail Homa filled in before you copy it.

This worksheet helps you gather what New York asks for when you tell the state. It is not the official form and cannot be filed. When it is filled in, copy the details into the official form on your state education department's homeschool page: https://www.nysed.gov/nonpublic-schools/home-instruction. You send it to superintendent of the local school district. When: By July 1 annually, or within 14 days of commencing home instruction mid-year. Homa does not file it for you.

Legal information, not legal advice · data: HomeschoolLeap, CC BY-SA 4.0

YOUR SAVED FAMILY RECORDS · STATE GUIDANCE VERIFIED MARCH 2026

Recorded learning days and hours

A snapshot of the learning time saved in Homa when this packet was made. Review every row before relying on it.

School year starts: Sep 1, 2026. A recorded day means at least one saved time entry for that child on that date. Family-wide time counts for every child. A date without a timed record does not establish absence.

Child	Recorded days	Saved time
Same (record 111111)	2	30m
Same (record 222222)	2	40m

Source: your family's Homa Hours record. Homa does not file or submit this record. You review, sign, and file anything your state requires.

Logged learning days

Dates, child scope, subjects, and time come from your saved Homa Hours record.

Date	Saved record
Sep 1, 2026	Same (record 111111): reading, 20m · Same (record 222222): math, 30m
Sep 2, 2026	Whole family: art, 10m